

Government (Scotland) Act, 1889, shall apply to any inquiry ordered by the Secretary for Scotland under this section.

The Local Government Board for Scotland may, upon any such determination as aforesaid being issued, make such order as may be necessary to give effect to the provisions of the Local Government (Scotland) Act, 1894, respecting the election of parish councillors in such burgh, and may, by such order or by any subsequent order, make any necessary variation in the dates specified in the said Act, and determine any questions that may arise as to the election and proceedings of the parish council, and such determination shall be final.

Audit of
accounts.

8. Notwithstanding anything contained in the principal Act, but subject always to the provisions of section one hundred and nine thereof and of section ninety-three of the Greenock Corporation Order, 1901, the sections of that Act relating to accounts and corporate property shall apply and have effect in all burghs within the meaning of that Act, and, subject as aforesaid, all portions of local Acts inconsistent with or dealing with the same matters as the said sections are hereby repealed.

CHAPTER 35.

An Act to amend the Law with respect to Customs Duties in the Isle of Man. [14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Sugar duties. 1.—(1) There shall, as from the twenty-ninth day of May nineteen hundred and three, be charged, levied and paid, on the following articles removed or imported into the Isle of Man, the following duties of customs:—

	£	s.	d.
Sugar which, when tested by the polariscope, indicates a polarisation exceeding ninety-eight degrees - - - the cwt.	0	4	2
Sugar of a polarisation not exceeding seventy-six degrees - - - the cwt.	0	2	0
Sugar of a polarisation not exceeding ninety-eight degrees, but exceeding seventy-six degrees the cwt.	{ The intermediate duties shown in the table in the First Schedule to this Act.		
Molasses (except when cleared for use by a licensed distiller in the manufacture of spirits) and invert sugar and all other sugar and extracts from sugar which cannot be completely tested by the polariscope and on which duty is not specially charged by this section—			
If containing 70 per cent. or more of sweetening matter - - - the cwt.	0	2	9

	£	s.	d.
If containing less than 70 per cent. and more than 50 per cent. of sweetening matter - - - the cwt.	0	2	0
If containing not more than 50 per cent. of sweetening matter - - - the cwt.	0	1	0
The amount of sweetening matter to be taken to be the total amount of cane, invert and other sugar contained in the article, as determined by analysis in manner directed by the Commissioners of Customs.			
Glucose :			
Solid - - - - - the cwt.	0	2	9
Liquid - - - - - " "	0	2	0
Saccharin (including substances of a like nature or use) - - - - - the oz.	0	1	3
and there shall, as from the same date, be allowed in respect of those articles the drawbacks set out in the Second Schedule to this Act.			

(2) The duties of Customs imposed by this Act are duties of Customs within the meaning of section seven of the Finance Act, 1901, and the Customs Tariff Act, 1876, shall apply to the Isle of Man, so far as necessary to give effect to that section.

1 Edw. 7. c. 7.
39 & 40 Vict.
c. 35.

2. The following provisions shall have effect in the Isle of Man, if corresponding provisions are enacted for the United Kingdom by virtue of any Act passed in the present session of Parliament :—

Molasses used
for food for
stock.

(1) Molasses imported into the Isle of Man shall not be liable to duty under this Act, if it is to be used solely for the purpose of food for stock and such conditions are complied with, in respect thereof, as to proof, security and otherwise, as may be imposed by the Commissioners of Customs for the purpose of protecting the revenue :

(2) An allowance, at the rate of one shilling per hundredweight, shall be made to a refiner on molasses produced in the Isle of Man from sugar on which duty has been paid on importation, if the molasses is to be used solely for the purpose of food for stock and such conditions are complied with, in respect thereof, as to proof, security and otherwise, as may be imposed by the Commissioners of Customs or Commissioners of Inland Revenue, as the case requires, for the purpose of protecting the revenue :

(3) If any person acts in contravention of any condition imposed by the Commissioners of Customs or Commissioners of Inland Revenue under this section, that person shall in respect of each offence be liable to a penalty not exceeding fifty pounds.

3. The additional duties of Customs on tobacco, tea and spirits removed or imported into the Isle of Man, imposed by section one of the Isle of Man (Customs) Act, 1900, and the additional duty on ale and beer removed or imported into the Isle of Man, imposed by the second paragraph of section two of that Act, shall continue to be charged, levied and paid as from the

Continuation
of additional
duties on
tobacco, tea,
spirits, ale
and beer.
63 & 64 Vict.
c. 31.

first day of August nineteen hundred and three until the first day of August nineteen hundred and four.

Short title.

4. This Act may be cited as the Isle of Man (Customs) Act, 1903.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

TABLE SHOWING INTERMEDIATE DUTIES ON SUGAR.

Degrees of Polarisation.				Percentage of the Maximum Duty of 4s. 2d.	Duty per Cwt.
Exceeding 76 and not exceeding 77	-	-	-	49·6	s. d. 2 0·8
„ 77 „ 78	-	-	-	51·2	2 1·6
„ 78 „ 79	-	-	-	52·8	2 2·4
„ 79 „ 80	-	-	-	54·4	2 3·2
„ 80 „ 81	-	-	-	56	2 4.
„ 81 „ 82	-	-	-	57·6	2 4·8
„ 82 „ 83	-	-	-	59·2	2 5·6
„ 83 „ 84	-	-	-	61	2 6·5
„ 84 „ 85	-	-	-	62·8	2 7·4
„ 85 „ 86	-	-	-	64·6	2 8·3
„ 86 „ 87	-	-	-	66·4	2 9·2
„ 87 „ 88	-	-	-	68·4	2 10·2
„ 88 „ 89	-	-	-	70·4	2 11·2
„ 89 „ 90	-	-	-	72·8	3 0·4
„ 90 „ 91	-	-	-	75·2	3 1·6
„ 91 „ 92	-	-	-	77·6	3 2·8
„ 92 „ 93	-	-	-	80	3 4
„ 93 „ 94	-	-	-	82·4	3 5·2
„ 94 „ 95	-	-	-	84·8	3 6·4
„ 95 „ 96	-	-	-	87·2	3 7·6
„ 96 „ 97	-	-	-	89·6	3 8·8
„ 97 „ 98	-	-	-	92	3 10

SECOND SCHEDULE.

- (1) DRAWBACKS TO BE ALLOWED ON ARTICLES REMOVED OR EXPORTED FROM THE ISLE OF MAN OR DEPOSITED IN ANY BONDED WAREHOUSE IN THE ISLE OF MAN FOR USE AS SHIPS' STORES, IF IT IS SHOWN TO THE SATISFACTION OF THE COMMISSIONERS OF CUSTOMS THAT THE DUTIES ON IMPORTATION HAVE BEEN DULY PAID. Section 1.

On sugar which has passed a refinery in the Isle of Man a drawback equal to the duty on sugar of the like polarisation.

On goods (other than beer), in the manufacture or preparation of which in the Isle of Man, any of the articles liable to duty has been used, a drawback equal to the duty in respect of the quantity of that article which appears to the satisfaction of the Treasury to have been used in the manufacture or preparation of the goods or, in the case of residual products, to be contained therein; and, in allowing that drawback, the Commissioners of Customs may, with the assent of the Treasury, in order to facilitate trade, relax in the case of any goods any requirements of sections one hundred and four and one hundred and six of the Customs Consolidation Act, 1876, as to the giving of security and the examination of goods.

- (2) DRAWBACK TO BE ALLOWED TO A REFINER ON MOLASSES PRODUCED IN THE ISLE OF MAN AND DELIVERED BY HIM TO A LICENSED DISTILLER FOR USE IN THE MANUFACTURE OF SPIRITS.

A drawback at the rate of one shilling the hundredweight.

CHAPTER 36.

An Act to amend the Locomotives on Highways Act, 1896.
[14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) If any person drives a motor car on a public highway recklessly or negligently, or at a speed or in a manner which is dangerous to the public, having regard to all the circumstances of the case, including the nature, condition and use of the highway, and to the amount of traffic which actually is at the time, or which might reasonably be expected to be, on the highway, that person shall be guilty of an offence under this Act. Reckless driving.

(2) Any police constable may apprehend without warrant the driver of any car who commits an offence under this section within his view, if he refuses to give his name and address or produce his